

		expired. The court holds final accounting hearings on Mondays at 1:30 p.m. The proposed order and judgment must state that counsel must submit a final administrator's report at least 16 days before the hearing addressing the status of the settlement administration, including the actual amounts paid to the aggrieved employees and the other amounts distributed under the settlement, including any uncashed checks. If all funds are not fully and finally disbursed, including uncashed checks, plaintiffs must request a continuance. 39. Add a final paragraph stating: "The court orders the parties and the Settlement Administrator to administer the settlement in accordance with the terms of the Settlement Agreement." Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents and file a proof of service.
11	30-2023-01351853 Alonzo vs. Reimagine Network	The hearing on plaintiffs' motion for approval is CONTINUED to October 12, 2026 at 1:30 p.m. in Department CX103 to permit the parties to address and respond to the below issues. A supplemental brief must be filed at least 16 days before the hearing and must address as necessary each of the below points. If required, an amendment to the settlement agreement must be submitted, rather than an "amended settlement agreement," to streamline the court's review of the documents. The parties must provide redlined copies of any revised documents, including all settlement provisions revised via amendment. The court has reviewed and considered the papers filed in support of plaintiffs' motion for approval of a \$215,000 PAGA settlement. The court has the following questions and comments: <u>As to the settlement:</u> 1. Counsel states that "on December 18, 2025, Plaintiffs filed a dismissal of Plaintiffs' class claims without prejudice and their individual claims with prejudice, leaving only the PAGA claims remaining in the FAC." ROA 72 ¶ 5. The ROA indicates no such filing. When will the request for dismissal of the class claims and

		accompanying declaration be filed? What are the reasons plaintiffs seek to dismiss the class claims? 2. The parties should provide the estimated high and low individual PAGA payments. 3. Plaintiffs should state their anticipated total compensation (including for any individual claims). Plaintiffs should submit copies of any individual settlement agreements. 4. Plaintiffs state defendant, rather than paying the additional \$77,249.50 due to an underestimated number of work weeks in the PAGA Period, elected to end the PAGA Period on 10-24-2024. ROA 72 ¶ 9; ROA 70 ¶ 16. The PAGA Period definition is thus incorrect. ¶ 1.23. 5. The “Released Parties” provision is overbroad. ¶ 1.29. It includes unrelated, ambiguous and/or unidentified third parties including “members, managing agents, attorneys, insurers, predecessors, successors, and assigns.” <i>Id.</i> 6. Defendant should state in a declaration filed with the court whether it is aware of any class, representative or other collective action in any other court that asserts claims similar to those asserted in this case. If any such actions are known to exist, the declaration must state the name and case number of any such case and the procedural status of that case and describe the impact of the settlement on that case. 7. Plaintiffs’ counsel seeks attorneys’ fees totaling one-third of the gross settlement amount. Absent unique circumstances, the court is unlikely to approve an attorneys’ fees award that exceeds 30% of the gross settlement amount. Plaintiffs’ counsel should reduce the attorneys’ fees or address in the supplemental filings whether any such unique circumstances exist here. 8. The time entries include no fewer than eight entries for work related to “individual settlements.” ROA 72 Ex. 4. Why should these hours be counted for purposes of the lodestar, i.e., what benefit(s) do aggrieved employees derive from plaintiffs’ individual
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		settlements? Relatedly, to what extent did the mediation include plaintiffs' individual settlements? 9. Plaintiffs' counsel seeks \$22,948.20 in costs. ROA 72 ¶ 19 Ex. 3. Plaintiff's counsel should submit invoices substantiating the mediation and expert charges. 10. To the extent plaintiffs seek reimbursement for the expert, plaintiffs must explain what the expert's contribution was to this case given the simplistic valuation analysis counsel has presented, notably without any reference or logical link to any expert analysis. ROA 72 ¶¶ 15-18 (asserting the "maximum" value of the PAGA claim was \$590,000, i.e., \$100 times 5,900 at-issue pay periods, and the "realistic" value was \$295,000, i.e., a 50% discount based on court's discretion). 11. Plaintiffs' counsel must disclose whether counsel has any fee-splitting arrangement with any other counsel, including the exact percentages or confirm none exists. 12. The court does not reimburse costs for postage, copying, and the like, and those items should be removed. ROA 72 Ex. 3. <u>As to the notice letter:</u> 13. The notice letter should be revised consistent with the above. 14. The first paragraph is incorrectly spaced. 15. This case was not filed as PAGA-only case and the description of the case is thus incomplete. ¶¶ 2, 3. 16. The PAGA Period end date is inconsistent with counsel's declaration. If defendant shortened the PAGA Period based on the number of pay periods, this must be disclosed. 17. Plaintiffs' individual settlements must be disclosed. ¶ 5. 18. No injunction will be issued. Remove the sentence "As an Aggrieved Employee, you are legally barred from asserting any of the PAGA claims released under the Settlement that arose during the PAGA Period." ¶ 8.
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14	30-2022-012685423 Garcia vs. Medina Lopez	Defendant Wilo's Express Inc. ("Wilo's") and Hugo Alexandro Median Lopez ("Lopez") (collectively, "Defendants") Motion to Dismiss the Action for Failure to Prosecute is GRANTED. This action is DISMISSED WITHOUT PREJUDICE. This action was filed on July 6, 2022. (ROA 2.) On September 5, 2024 (ROA 76), Plaintiffs filed a Notice of Settlement stating that the settlement was "Unconditional," not "Conditional." "Except as provided in (c) [conditional settlements] or (d) [compromise of claims of a minor or disabled person], each plaintiff or other party seeking affirmative relief must serve and file a request for dismissal of the entire case within 45 days after the date of settlement of the case." (Cal. R. Ct., R. 3.1385(b).) "If the plaintiff or other party required to serve and file the request for dismissal does not do so, the court must dismiss the entire case 45 days after it receives notice of settlement unless good cause is shown why the case should not be dismissed. (<i>Id.</i>) "If the settlement of the case involves the compromise of the claim of a minor or person with a disability, the court must not hold an order to show cause hearing under